

CRIMINAL LAW

Tuesday, Sept. 22
(Lecture 7)

*Hi! This slide will help
you prepare for today's
class.*

- Today, we continue our discussion of the “Constitutional Limits on Criminal Law.” We will start by learning about a recognized s. 7 principle of fundamental justice: a law cannot be unconstitutionally *vague*. Please be prepared to discuss *Canadian Foundation*.
- Next, we will learn about three other principles fundamental justice (arbitrariness, overbreadth, gross disproportionality), all of which are discussed in *Bedford*. Please be prepared to discuss that case, as well as the excerpt from *Safarzadeh-Markhali*. (We will learn about how the key principles from those two cases interact).
- I will also say a few words about *Kloubakov*, which provides an update to *Bedford*.

CRIMINAL LAW

**Tuesday, September 22
(Lecture 7)**

Charter, s. 7

Everyone has the right to life, liberty and security of the person and the right not to be deprived thereof except in accordance with the principles of fundamental justice.

R. v. Malmö-Levine

1. The principle must be a legal principle;
2. There must be a consensus that the rule or principle is fundamental to the way in which the legal system ought fairly to operate; *and*
3. It must be identified with sufficient precision to yield a manageable standard against which to measure deprivations of life, liberty or security of the person.

Principles of Fundamental Justice (1/3)

- **Independence & impartiality of the judiciary**
- **Right to a fair trial**
- **Right to make full answer and defence**
- **Aspects of the right to silence**
- **Etc. (etc!)**

Principles of Fundamental Justice (2/3)

- **Resolute advocacy by [criminal defence] lawyers**
- **State cannot impose duties on lawyers that undermine duty of lawyers' commitment to clients' causes**
- **Prosecutor must not act for improper purposes (e.g. partisan motive)**

Principles of Fundamental Justice (3/3)

- **Criminal offences must not be:**
 - Vague
 - Overbroad
 - Arbitrary
 - Grossly disproportionate

Objectives for Week 4

22. Explain how ss. 91 & 92 of the *Constitution* divide power over the criminal justice system between the federal and provincial/territorial legislatures.
23. Add to your “statutory interpretation toolkit”:
 - The purposive approach to *Charter* interpretation
24. Explain the standard for recognizing a s. 7 (*Charter*) “principle of fundamental justice.”
25. **Engage in critical analysis about how much interpretive work a court should do before declaring a criminal law void for vagueness.**
26. **Distinguish and apply the following s. 7 (*Charter*) principles of fundamental justice:**
 - **Vagueness [...]**

Canadian Foundation

“A law is unconstitutionally vague if it “does not provide an adequate basis for legal debate” and “analysis”; “does not sufficiently delineate any area of risk”; or “is not intelligible”. The law must offer a “grasp to the judiciary””

(para. 15)

Vagueness

Constitutionally Valid

Offence

Unconstitutionally Vague

Offence

Canadian Foundation

“A law must set an intelligible standard both for the citizens it governs and the officials who must enforce it. The two are interconnected. A vague law prevents the citizen from realizing when he or she is entering an area of risk for criminal sanction. It similarly makes it difficult for law enforcement officers and judges to determine whether a crime has been committed. This invokes the further concern of putting too much discretion in the hands of law enforcement officials, and violates the precept that individuals should be governed by the rule of law, not the rule of persons. The doctrine of vagueness is directed generally at the evil of leaving “basic policy matters to policemen, judges, and juries for resolution on an *ad hoc* and subjective basis, with the attendant dangers of arbitrary and discriminatory application” (para. 16)

Criminal Code, s. 43 **(correction of child by force)**

Every schoolteacher, parent or person standing in the place of a parent is justified in using force by way of correction toward a pupil or child, as the case may be, who is under his care, if the force does not exceed what is reasonable under the circumstances.

Canadian Foundation

“Ad hoc discretionary decision making must be distinguished from appropriate judicial interpretation. Judicial decisions may properly add precision to a statute. Legislatures can never foresee all the situations that may arise, and if they did, could not practically set them all out. It is thus in the nature of our legal system that areas of uncertainty exist and that judges clarify and augment the law on a case-by-case basis.”

(para. 17)

Statutory Interpretation Toolkit

- ✓ The modern principle of statutory interpretation
- ✓ The principle of bilingual interpretation
- ✓ The rule of strict construction
- ✓ The purposive approach to *Charter* interpretation



The Modern Principle of Statutory Interpretation

- The words of an Act
- Their entire context
- Their grammatical and ordinary sense
- The scheme of the Act
- The object of the Act
- The intention of Parliament
- Where two readings equally plausible, adopt the one that accords with *Charter* values



Criminal Code, s. 43

(correction of child by force)

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Canadian Foundation

“In the Chief Justice’s reasons, it is useful to note how much work must go into making the provision constitutionally sound and sufficiently precise [...] At some point, in an effort to give sufficient precision to provide notice and constrain discretion in enforcement, mere interpretation ends and an entirely new provision is drafted.”

(Arbour J (dissenting) at para. 190)

Canadian Foundation

How much interpretive work a court should do before declaring a criminal law void for vagueness?

- Whose reasons do you prefer: McLachlin CJ or Abour J?
- The majority's interpretation of s. 43 may not be self-evident or known to parents/guardians, teachers, and/or enforcement officials. What do McLachlin CJ and Abour J say about this fact? Whose take is more compelling?

Objectives for Week 3 (continued)

22. Explain how ss. 91 & 92 of the *Constitution* divide power over the criminal justice system between the federal and provincial/territorial legislatures.
23. Add to your “statutory interpretation toolkit”:
 - The purposive approach to *Charter* interpretation
24. Explain the standard for recognizing a s. 7 (*Charter*) “principle of fundamental justice.”
25. **Engage in critical analysis about how much interpretive work a court should do before declaring a criminal law void for vagueness.**
26. **Distinguish and apply the following s. 7 (*Charter*) principles of fundamental justice:**
 - **Vagueness [...]**

Objectives for Week 4

26. Distinguish and apply the following s. 7 (*Charter*) principles of fundamental justice:

- **Vagueness**
- **Overbreadth**
- **Arbitrariness**
- **Gross disproportionality**

Vagueness

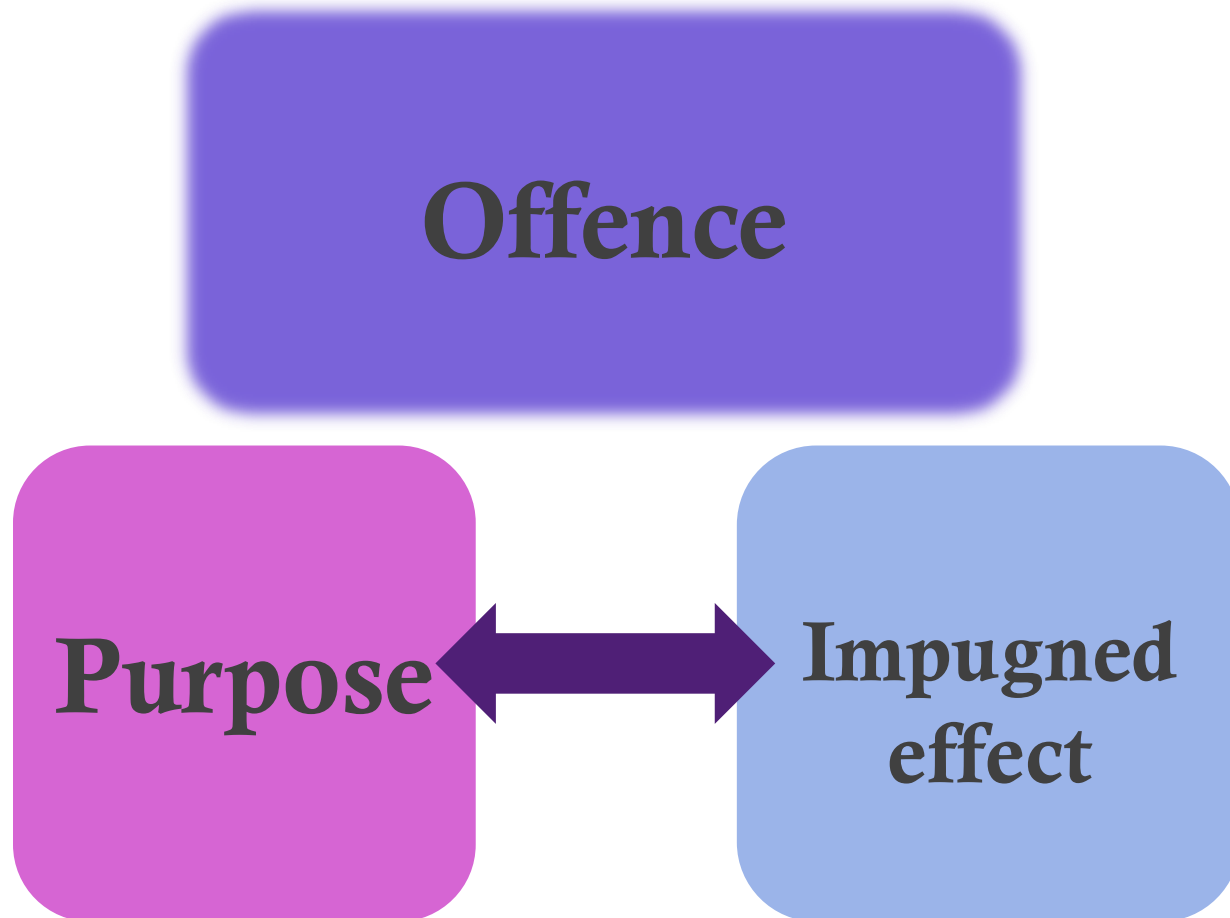
Constitutionally Valid

Offence

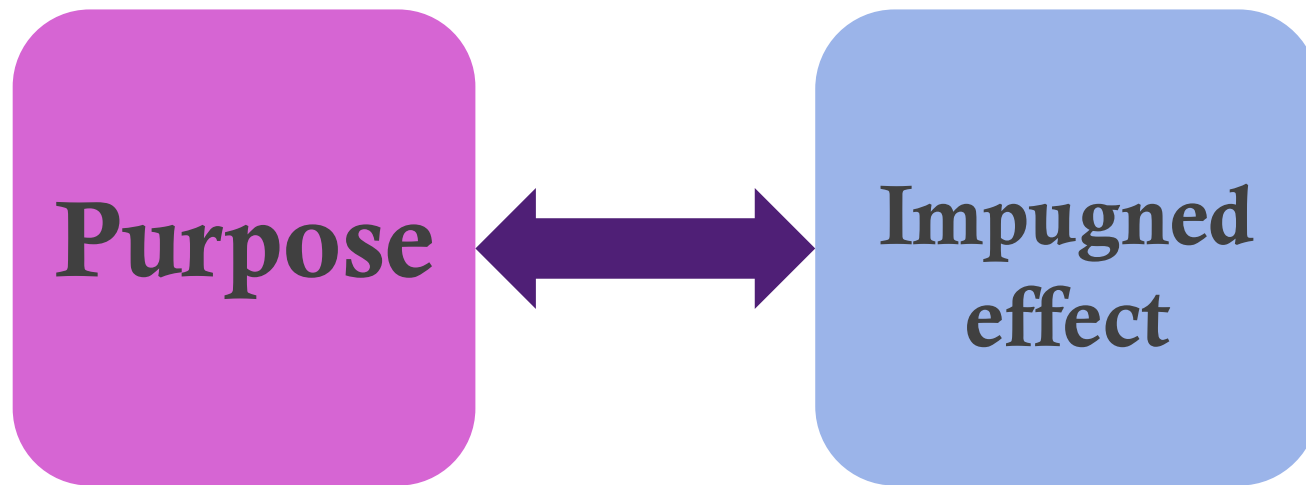
Unconstitutionally Vague

Offence

Constitutionally Valid Offence



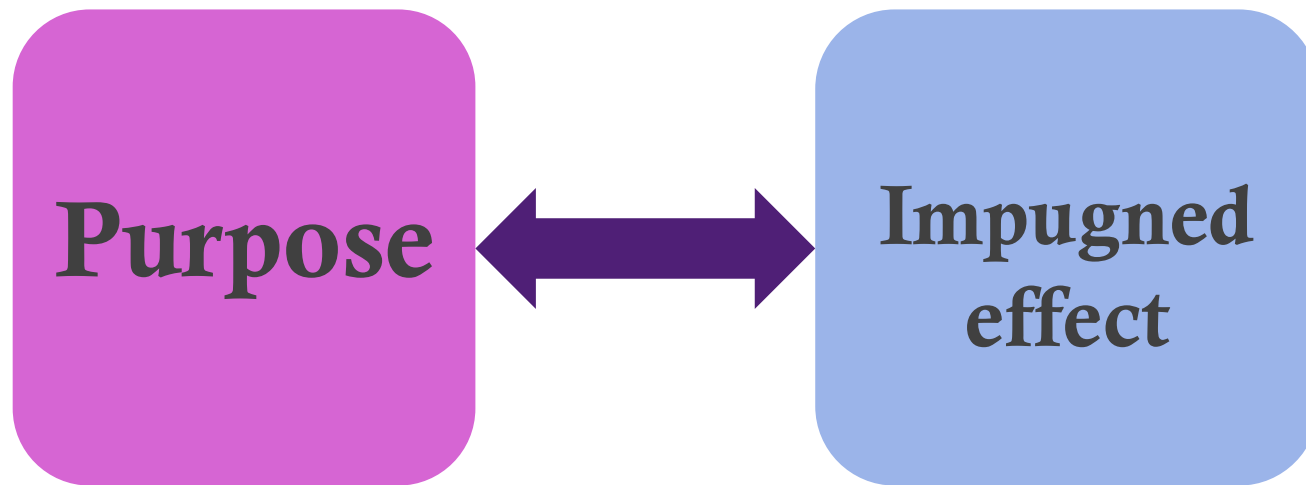
Constitutionally Valid Offence



R. v. Safarzadeh-Markhali

- **Purpose is distinct from means used to achieve purpose**
- **Purpose characterized at appropriate level of generality**
- **Statement of purpose should be precise and succinct**
- **Appropriateness of purpose is not a consideration**
- **Consider: (1) statements in legislation, if any; (2) text, context, and scheme of legislation; and (3) extrinsic evidence, e.g. legislative history**

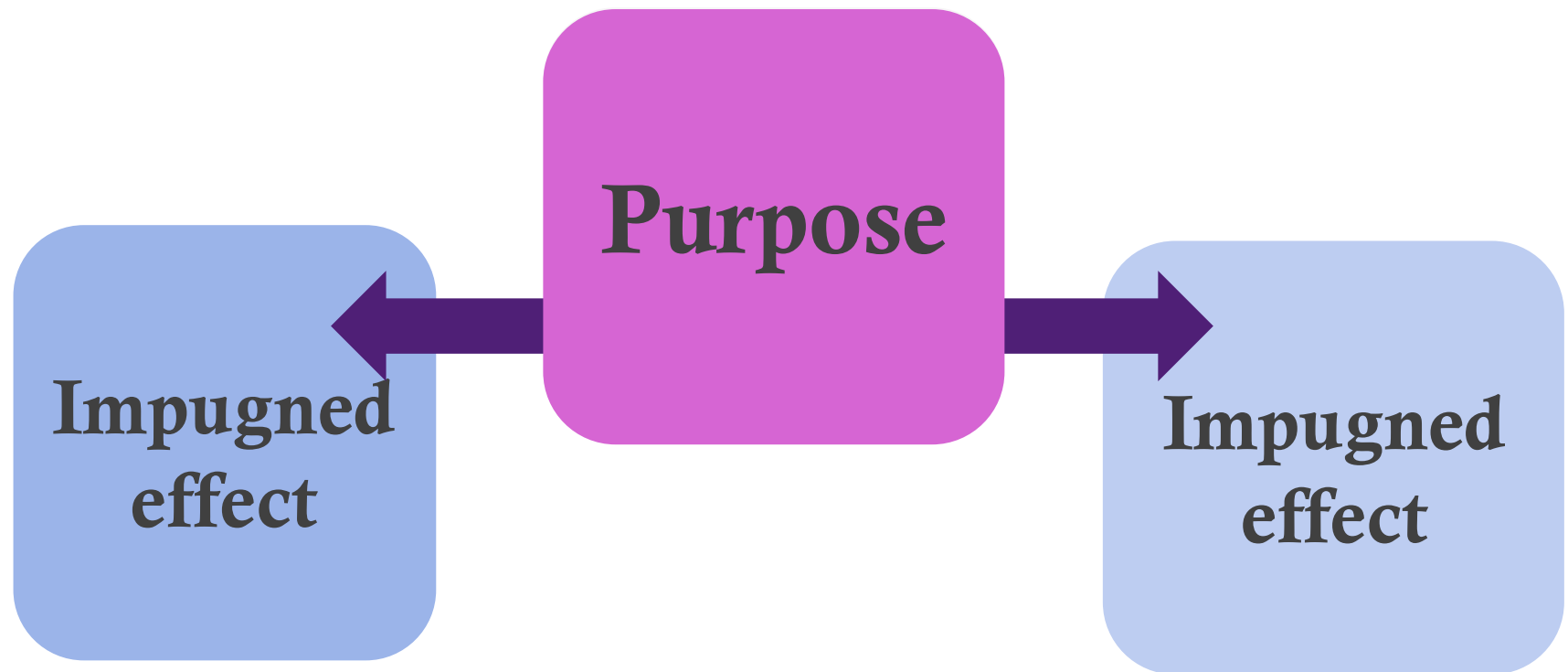
Constitutionally Valid Offence



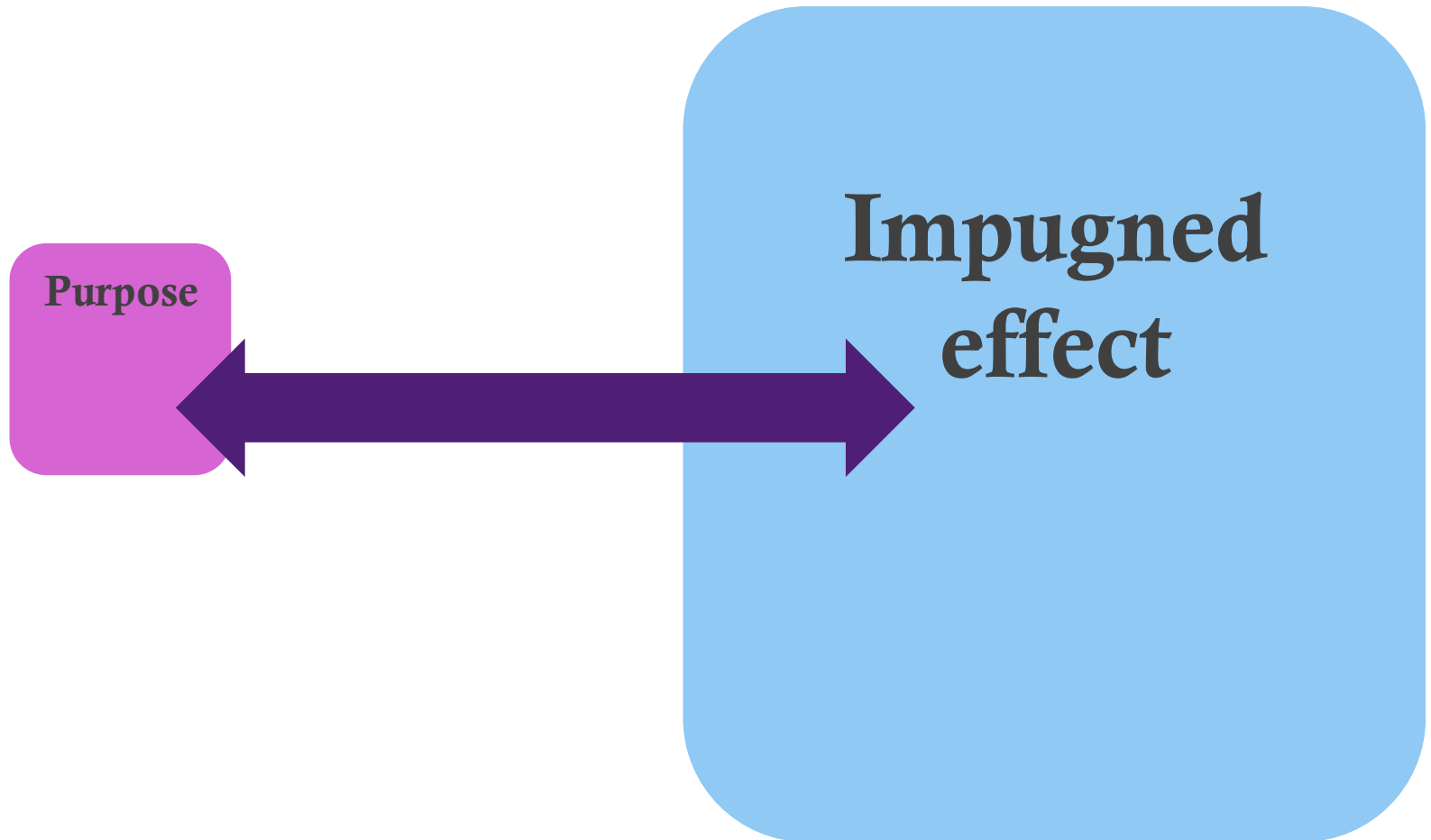
Arbitrariness



Overbreadth



Gross Disproportionality



Bedford v. Canada



Terri-Jean Bedford, Valerie Scott and Amy Lebovitch (at the Supreme Court of Canada in December 2013)

ARBITRARINESS	OVERBREADTH	GROSS DISPROPORTIONALITY
No rational connection between the effect of the law on life/liberty/security of the person and the object of the law.	The law goes too far and interferes with some conduct that bears no connection to its objective.	Effect of the law on life/liberty/security of the person is grossly disproportionate to the law's objective.
Is there a direct, rational connection between the purpose of the law and its impugned effect on life, liberty, and/or security of the person, in the sense that the impugned effect bears some relation to the law's purpose? <i>If there is no connection at all, then the law is arbitrary.</i> <i>If there is a connection to some, but not all, of the impugned effects (i.e. if it is arbitrary in part), then the law is overbroad.</i>		Is the law's effect on life, liberty, and/or security of the person so grossly disproportionate to its purpose that it cannot be rationally supported? <i>If so, the law is grossly disproportionate.</i>

Bedford v. Canada





PREVENTING HARM IN THE CANADIAN SEX INDUSTRY: A REVIEW OF THE *PROTECTION OF COMMUNITIES AND EXPLOITED PERSONS ACT*

**Report of the Standing Committee on
Justice and Human Rights**

**Randeep Sarai
Chair**

**JUNE 2022
44th PARLIAMENT, 1st SESSION**

R v Kloubakov

- Accused worked as drivers in escort business, charged under new *Criminal Code* provisions.
- Accused constitutionally challenged provisions under s. 7, claiming they had the same defects as those struck down in *Bedford*
- Accused did *not* challenge on the basis of vagueness (despite making some claims about legal uncertainty)
- **“Applying the modern principle of statutory interpretation, neither the material benefit offence nor the procuring offence prohibits the safety measures contemplated in *Bedford*. Because both offences are unambiguous, there is no need to resort to the presumption that Parliament intended to comply with the *Charter*.”** (at para 133)

The Modern Principle of Statutory Interpretation

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R v Kloubakov

- “[N]either the material benefit offence nor the procuring offence prohibits the safety measures contemplated in *Bedford*.” (at para 133)
- Properly interpreted, provisions do not prohibit sex workers from
 - Working in indoor fixed locations
 - Hiring drivers, bodyguards, or receptionists
 - Working together in cooperative or cost-sharing arrangements; or
 - Advising each other about safe working conditions

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Objectives for Weeks 3-4

25. Engage in critical analysis about how much interpretive work a court should do before declaring a criminal law void for vagueness.

26. Distinguish and apply the following s. 7 (*Charter*) principles of fundamental justice:

- **Vagueness**
- **Overbreadth**
- **Arbitrariness**
- **Gross disproportionality**

Course Outline: Descriptive Overview

PART I: BACKGROUND AND CONTEXT FOR THE STUDY OF CRIMINAL LAW

1. Introduction to the Course
2. Sentencing
3. The Criminal Justice Process
4. Presumption of Innocence, Burdens of Proof, and Standards of Proof

PART II: HOW THE CRIMINAL LAW IS MADE

5. Sources of Criminal Law
6. Constitutional Limits on Criminal Law

PART III: THE ELEMENTS OR 'INGREDIENTS' OF A CRIMINAL OFFENCE